

		Where responses were timely served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. Code Civ. Proc. § 2033.290; <i>Wimberly v. Derby Cycle Corp.</i> (1997) 56 Cal. App. 4th 618, 636. This motion must be preceded by meet and confer efforts and be made within 45 days. Code Civ. Proc. § 2033.290(b), (c). The motion also must be accompanied by a separate statement. CRC 3.1345(a)(1). Here, the current record shows that Defendant served only unverified responses to RFAs, but responses that included objections. The RFAs cannot be deemed admitted in the face of the objections. Accordingly, Defendant's motion to deem RFAs admitted is denied.
104.	2022-1268760 <i>Jimenez v. FCA US, LLC.</i>	Defendant Central Valley Automotive's ("Defendant") unopposed motion to transfer venue to Stanislaus County Superior Court is GRANTED. Defendant seeks an order transferring this action to Stanislaus County pursuant to CCP 397 (c) because that is where Repair Shop resides, where the automotive sales contract was executed, where all repairs were performed, and all witnesses (including Plaintiffs) reside. Defendant contend transferring the action would promote the ends of justice and is for the convenience of witnesses. The Court may change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change. (Code Civ. Proc. § 397, subd. (c).) The moving party has the burden of proving "that both the convenience of witnesses and the ends of justice will be promoted thereby ... It is primarily a question for the trial judge whether that burden has been successfully sustained." [Citation.]” (<i>Corfee v. Southern California Edison Co.</i> (1962) 202 Cal.App.2d 473, 477, 479; <i>Minatta v. Crook</i> (1959) 166 Cal.App.2d 750, 755.) The convenience of witnesses who are employees of a party to the litigation are generally not considered on a motion for change of venue. (<i>International Inc. Co. v. Merola</i> (1959) 175 Cal.App.2d 439, 446; accord, <i>Lieberman v. Superior Court</i> (1987) 194 Cal.App.3d 396, 401.) A “limited exception has arisen allowing a court to consider the convenience of witnesses who are employees of a party. That exception obtains when the employees are called as witnesses by the

		adverse party rather than on behalf of their employer.” (Lieberman, supra, 194 Cal.App.3d at p. 401.) This is a lemon law case. Here, the Subject Vehicle’s purchase and service are the central issues of this case. At least nine (9) of the identified witnesses reside some 350 miles from Orange County, in Stanislaus County. They are all knowledgeable about and are anticipated to testify regarding the sale, service presentations, service, repair and repair history of the Subject Vehicle as it relates to Plaintiffs’ claims in this action. Importantly, Defendant anticipates these witnesses being called by Plaintiffs in this case, not by Defendants. The witnesses are almost exclusively service technicians, who are paid when they work. Any witness fees would not come close to compensating these mechanics for missed work. To the extent that trial is held in Stanislaus County, the witnesses could conceivably miss mere hours of work, versus days if the trial is held in Orange County. The material case witnesses would have to either drive 12 hours round trip, incur the expense of flying, incur the expense of a hotel in Orange County. Moreover, each of these automotive dealer employees would be missing one or more full days of work and associated income if forced to attend trial in Orange County. As there is no opposition to the instant motion, these facts and contentions are undisputed. Thus, change of venue appears appropriate for the convenience of witnesses. While Defendant FCA’s principal place of business is in Orange County, there is no other connection to this county and FCA does not oppose the instant motion. Thus, change of venue to Stanislaus County appears appropriate in the promotion of justice as there is very little relationship to Orange County. Based upon the foregoing, Defendant’s motion is GRANTED. All future dates in this action are hereby VACATED. Moving Party to give notice.
105.	2023-1318579 Selter v. California Eastern Star Foundation	The Court grants specially appearing Defendant Eastern Star Home dba Senior Living Community’s (erroneously sued as California Eastern Star Foundation dba Yorba Linda Senior Living) unopposed Motion to quash service of the Summons and Complaint.